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TAB 12



Board of Education Report

File #: Rep-132-23/24, **Version:** 1

Certification of the Final Subsequent Program Environmental Impact Report, Adoption of Findings of Fact, Statement of Overriding Considerations, and Standard Conditions of Approval for the School Upgrade Program

December 12, 2023

Office of Environmental Health & Safety

Action Proposed:

Review and make a determination on the proposed Resolution (attached) to certify the Final Subsequent Program Environmental Impact Report (Subsequent Program EIR), adopt the Findings of Fact, Statement of Overriding Considerations, and Standard Conditions of Approval for the Final Subsequent Program EIR for the School Upgrade Program (SUP or proposed program) prepared in compliance with the California Environmental Quality Act (CEQA) (Public Resources Code §21000 et seq.) and State CEQA Guidelines (California Code of Regulations, Title 14, Division 6, Chapter 3 §15000 et seq.).

Background:

In 2020, voters in Los Angeles County passed Measure RR as a funding mechanism to help address the significant and unfunded needs of Los Angeles public school facilities. Measure RR is aimed at continuing the funding for improvement of facilities and technology, upgrade of existing facilities, as well as increased safety measures. Measure RR proceeds may also be used when necessary to complete projects initiated with funds from Measure K, R, Y, and/or Q as long as the project appears on the Measure RR Bond Project List, as authorized by voters.

Projects designed to achieve the objectives of Measure RR will be incorporated into the SUP based on a prioritization methodology adopted through the solicitation of input from stakeholders to help inform priorities, scoping and project development.

Under Measure RR and in conjunction with other, ongoing LA Unified Facilities programs, the District is proposing to upgrade, modernize, and replace aging and deteriorating District school facilities; update technology; and address District school facilities inequities in order to provide students with physically and environmentally safe, secure, and updated school facilities that support 21st century learning at hundreds of neighborhood schools District-wide. Not every project will be undertaken at every campus, and some campuses may not undergo any of the repairs, upgrades, or modernization. Each category of project will be carried out at schools found to have the greatest need, as determined by the Strategic Execution Plan adopted by the Board.

The use of a program-level EIR provides LAUSD, as Lead Agency under CEQA, to consider broad policy alternatives and program-wide conditions of approval and gives LAUSD greater flexibility to address project-specific and cumulative impacts on a comprehensive basis.

Program EIR

On November 10, 2015, the LAUSD Board of Education certified the SUP Program EIR. LAUSD's SUP Program EIR met the criteria for a Program EIR under CEQA Guidelines Section 15168 (a)(4) as one "prepared

on a series of actions that can be characterized as one large project and are related...[a]s individual activities carried out under the same authorizing statutory or regulatory authority and having generally similar environmental effects which can be mitigated in similar ways.” CEQA Guidelines Section 15168 states that a Program EIR is an EIR which may be prepared on a series of actions that can be characterized as one large project and are related either geographically; as logical parts in the chain of contemplated actions; in connection with the issuance of rules, regulations, plans or other general criteria to govern the conduct of a continuing program; or as individual activities carried out under the same authorizing statutory or regulatory authority and having generally similar environmental effects which can be mitigated in similar ways.

The SUP Program EIR provided the framework for evaluating environmental impacts related to ongoing facility upgrade projects and enabled LAUSD to streamline future environmental compliance and reduced the need for repetitive environmental studies. The Program EIR served as the framework and baseline for CEQA analyses of later projects through a process known as “tiering” (CEQA Guidelines Sections 15152(a) and 15385). The projects that were evaluated under the SUP Program EIR were able to focus the later EIRs and negative declarations on narrower projects; incorporate by reference the general discussions from the Program EIR; and concentrate the later EIR or negative declaration solely on the issues specific to the later project.

Consistent with CEQA, if changes to a project or its circumstances occur, or new information becomes available after certification of an EIR, the lead agency shall prepare a subsequent EIR if required under [14 CCR Section 15162(a)]. Given the expansion of the types of projects that will be evaluated under the Subsequent Program EIR; the District determined that a Subsequent EIR was necessary because:

- Considerable changes to the CEQA Guidelines and Statute have been enacted since the SUP Program EIR was certified in 2015 (e.g., Assembly Bill 52, Appendix G issue area updates, vehicle miles traveled [VMT] analyses, etc.).
- The District has implemented new procedures, conditions, and practices since the SUP Program EIR was certified.
- The Subsequent Program EIR will reference the SUP Program EIR and incorporate ‘lessons learned’ and new information obtained from review of projects under the SUP Program EIR.
- The Subsequent EIR will be given the same notice and public review as the certified SUP Program EIR, as required under CEQA Guidelines Section 15072 or Section 15087.

The intent of the Subsequent Program EIR is to provide sufficient information on the potential environmental impacts of the proposed SUP to allow the LAUSD Board of Education to make an informed decision regarding approval of the project, and if approved, to streamline future CEQA compliance.

This Subsequent Program EIR has been prepared in accordance with requirements of the:

- California Environmental Quality Act (CEQA) of 1970, as amended (PRC, Section 21000 et seq.)
- State Guidelines for the Implementation of the CEQA of 1970 (CEQA Guidelines), as amended (California Code of Regulations [CCR], Title 14, Sections 15000 et seq.)

The overall purpose of this Subsequent Program EIR is to inform the Lead Agency, responsible agencies, decision makers, and the general public of the potential environmental effects from implementation of the SUP. This Subsequent Program EIR addresses the potential environmental effects of the SUP, including effects that may be significant and adverse, and evaluates alternatives to the SUP.

The Notice of Preparation of a Draft Subsequent Program EIR was circulated for a 30-day public review period (January 3, 2023 to February 2, 2023). Because of the large reach of the proposed program, LAUSD did not prepare an Initial Study (IS) to reduce the scope of the Subsequent Program EIR; the Subsequent Program EIR includes an analysis of all 20 CEQA topics and one additional LAUSD topic (pedestrian safety). The Subsequent Program EIR is required to identify any potentially significant adverse impacts and recommend mitigation that would reduce the impacts to less than insignificant.

The Subsequent Program EIR was prepared and circulated for a 45-day public review period (July 5, 2023 to August 19, 2023). The analysis documented in the Final Subsequent Program EIR found that the proposed program would result in possible significant and unavoidable impacts associated with air quality (construction), cultural resources (historical), noise (stadium, construction), and traffic.

The proposed action by the Board is to adopt the attached Resolution, which adopts the Subsequent Program EIR as required by CEQA.

Bond Program

The District's bond program has been operating under the framework of the School Upgrade Program (SUP) since January 2014, when the program's focus shifted from constructing new facilities to address decades of overcrowding, to addressing aging existing school facilities. Projects developed under the SUP framework are upgrading, modernizing, and replacing aging and deteriorating school facilities, updating technology, and addressing facilities inequities.

Expected Outcomes:

Staff proposes that the Board review and make a determination on the attached Resolution to certify the Final Subsequent Program EIR, adopt the Findings of Fact, Statement of Overriding Considerations, and Standard Conditions of Approval for the Final Subsequent Program EIR pursuant to CEQA and State CEQA Guidelines. This action is required for the Board to consider approving the proposed Project.

Board Options and Consequences:

A “Yes” vote to certify the Subsequent Program EIR, adopt the Findings of Fact, Statement of Overriding Considerations, and LAUSD Standard Conditions of Approval for the SUP would enable OEHS to proceed with tiering future project-specific CEQA reviews off of the Subsequent Program EIR and streamlining the CEQA process for future site-specific projects.

A vote of “No” to certify the Subsequent Program EIR, adopt the Findings of Fact, Statement of Overriding Considerations, and LAUSD Standard Conditions of Approval for the SUP would not enable OEHS to proceed with tiering future project-specific CEQA reviews off of the Subsequent Program EIR and prevent streamlining the CEQA process for future site-specific projects.

Policy Implications:

This action does not change District policy. This action helps facilitate the Facilities Services Division Strategic Execution Plan and supports the goals and objectives of the School Upgrade Program.

Budget Impact:

This action does not have a budget impact.

Student Impact:

This action does not have a student impact. This action helps facilitate the Facilities Services Division Strategic

Execution Plan and supports the goals and objectives of the School Upgrade Program.

Equity Impact Table:

Component	Score	Score Rationale
Recognition	3	The overall purpose of this Subsequent Program EIR is to inform the Lead Agency, responsible agencies, decision makers, and the general public of the potential environmental effects from implementation of the SUP. This Subsequent Program EIR addresses the potential environmental effects of the SUP, including effects that may be significant and adverse, and evaluates alternatives to the SUP.
Resource Prioritization	3	The Subsequent Program EIR addresses potential effects of the SUP. The SUP's framework focuses on upgrading, modernizing, and replacing aging and deteriorating school facilities, updating technology, and addressing facilities inequities.
Results	4	The overall purpose of this Subsequent Program EIR is to inform the Lead Agency, responsible agencies, decision makers, and the general public of the potential environmental effects from implementation of the SUP. It is a districtwide program-level EIR, resulting in an equitable environmental analysis.
TOTAL	10	

Issues and Analysis:

The analysis documented in the Final Subsequent Program EIR found that the proposed program would result in possible significant and unavoidable impacts associated with air quality (construction), cultural resources (historical), noise (increase in ambient noise levels, construction), and traffic. These are program-wide and are not associated with site-specific project impacts.

The District is the “Lead Agency” as defined in the State CEQA Guidelines §§15050-15053, and the Board shall review and consider the Subsequent Program EIR and its supporting documents and comments.

Attachments:

Attachment A: Resolution of the Los Angeles Unified School District Board for Certification of the Final Subsequent Program Environmental Impact Report, Adoption of Findings of Fact, Statement of Overriding Considerations, and Standard Conditions of Approval for the School Upgrade Program

Attachment B: October 2023 | [Final Subsequent Environmental Impact Report](https://drive.google.com/file/d/1VaCSwdbqZVQE4bT3yAGrvRB7cZYRADM4/view?)
<<https://drive.google.com/file/d/1VaCSwdbqZVQE4bT3yAGrvRB7cZYRADM4/view?>
(this is a 1,300 page report which can be view by clicking on the link above)

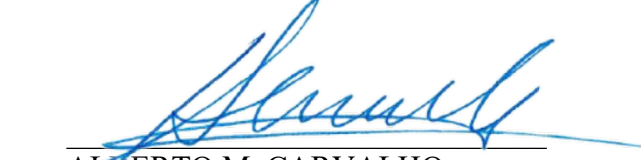
Attachment C: Findings of Fact

Attachment D: Statement of Overriding Considerations

Submitted:

12/05/2023, Revision # 1

RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent
Business Services & Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

APPROVED & PRESENTED BY:

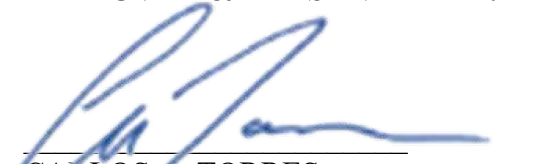

ANDRES E. CHAIT
Chief of School Operations

☒ Approved as to form.

REVIEWED BY:


NORBERTO DELGADILLO
Deputy Chief Business Officer, Finance

APPROVED & PRESENTED BY:


CARLOS A. TORRES,
Director
Office of Environmental Health & Safety

☒ Approved as to budget impact statement.



LOS ANGELES UNIFIED SCHOOL DISTRICT Board of Education Report

RESOLUTION OF THE LOS ANGELES UNIFIED SCHOOL DISTRICT BOARD OF EDUCATION CERTIFICATION OF THE FINAL SUBSEQUENT PROGRAM ENVIRONMENTAL IMPACT REPORT, ADOPTION OF FINDINGS OF FACT, STATEMENT OF OVERRIDING CONSIDERATIONS, AND STANDARD CONDITIONS OF APPROVAL FOR THE SCHOOL UPGRADE PROGRAM

Whereas, the District's bond program has been operating under the framework of the School Upgrade Program (SUP) since January 2014, when the program's focus shifted from constructing new facilities to address decades of overcrowding, to addressing aging existing school facilities. Projects developed under the SUP framework are upgrading, modernizing, and replacing aging and deteriorating school facilities, updating technology, and addressing facilities inequities; and

Whereas, in 2020, voters in Los Angeles County passed Measure RR as a funding mechanism to help address the significant and unfunded needs of Los Angeles public school facilities. Measure RR is aimed at continuing the funding for improvement of facilities and technology, upgrade of existing facilities, as well as increased safety measures. Measure RR proceeds may also be used when necessary to complete projects initiated with funds from Measure K, R, Y, and/or Q as long as the project appears on the Measure RR Bond Project List, as authorized by voters; and

Whereas, projects designed to achieve the objectives of Measure RR will be incorporated into the SUP based on a prioritization methodology adopted through the solicitation of input from stakeholders to help inform priorities, scoping and project development; and

Whereas, under Measure RR and in conjunction with other, ongoing LA Unified Facilities programs, the District is proposing to upgrade, modernize, and replace aging and deteriorating District school facilities; update technology; and address District school facilities inequities in order to provide students with physically and environmentally safe, secure, and updated school facilities that support 21st century learning at hundreds of neighborhood schools District-wide. Not every project will be undertaken at every campus, and some campuses may not undergo any of the repairs, upgrades, or modernization. Each category of project will be carried out at schools found to have the greatest need, as determined by the Strategic Execution Plan adopted by the Board; and

Whereas, the use of a program-level Environmental Impact Report (EIR) provides LAUSD, as Lead Agency, under CEQA, to consider broad policy alternatives and program-wide conditions of approval and gives LAUSD greater flexibility to address project-specific and cumulative impacts on a comprehensive basis; and

Whereas, on November 10, 2015, the LAUSD Board of Education certified the SUP Program EIR.¹ LAUSD's SUP Program EIR met the criteria for a Program EIR under CEQA Guidelines Section 15168 (a)(4) as one "prepared on a series of actions that can be characterized as one large project and are

¹ Program EIR for the School Upgrade Program. Report. 2015. <http://achieve.lausd.net/ceqa>.

related...[a]s individual activities carried out under the same authorizing statutory or regulatory authority and having generally similar environmental effects which can be mitigated in similar ways.” CEQA Guidelines Section 15168 states that a Program EIR is an EIR which may be prepared on a series of actions that can be characterized as one large project and are related either geographically; as logical parts in the chain of contemplated actions; in connection with the issuance of rules, regulations, plans or other general criteria to govern the conduct of a continuing program; or as individual activities carried out under the same authorizing statutory or regulatory authority and having generally similar environmental effects which can be mitigated in similar ways; and

Whereas, the SUP Program EIR provided the framework for evaluating environmental impacts related to ongoing facility upgrade projects and enabled LAUSD to streamline future environmental compliance and reduced the need for repetitive environmental studies. The Program EIR served as the framework and baseline for CEQA analyses of later projects through a process known as “tiering” (CEQA Guidelines Sections 15152(a) and 15385). The projects that were evaluated under the SUP Program EIR were able to focus the later EIRs and negative declarations on narrower projects; incorporate by reference the general discussions from the Program EIR; and concentrate the later EIR or negative declaration solely on the issues specific to the later project; and

Whereas, consistent with CEQA, if changes to a project or its circumstances occur, or new information becomes available after certification of an EIR, the lead agency shall prepare a subsequent EIR if required under [14 CCR Section 15162(a)]. Given the expansion of the types of projects that will be evaluated under the Subsequent Program EIR;² the District determined that a Subsequent EIR was necessary because:

- Considerable changes to the CEQA Guidelines and Statute have been enacted since the SUP Program EIR was certified in 2015 (e.g., Assembly Bill 52, Appendix G issue area updates, vehicle miles traveled [VMT] analyses, etc.).
- The District has implemented new procedures, conditions, and practices since the SUP Program EIR was certified.
- The Subsequent Program EIR will reference the SUP Program EIR and incorporate ‘lessons learned’ and new information obtained from review of projects under the SUP Program EIR.

The Subsequent EIR will be given the same notice and public review as the certified SUP Program EIR, as required under CEQA Guidelines Section 15072 or Section 15087; and

Whereas, the intent of the Subsequent Program EIR is to provide sufficient information on the potential environmental impacts of the proposed SUP to allow the LAUSD Board of Education to make an informed decision regarding approval of the project, and if approved, to streamline future CEQA compliance; and

Whereas, this Subsequent Program EIR has been prepared in accordance with requirements of the:

- California Environmental Quality Act (CEQA) of 1970, as amended (PRC, Section 21000 et seq.)
- State Guidelines for the Implementation of the CEQA of 1970 (CEQA Guidelines), as amended (California Code of Regulations [CCR], Title 14, Sections 15000 et seq.); and

Whereas, the overall purpose of this Subsequent Program EIR is to inform the Lead Agency, responsible agencies, decision makers, and the general public of the potential environmental effects from

² 14 CCR Section 15162(a)

implementation of the SUP. This Subsequent Program EIR addresses the potential environmental effects of the SUP, including effects that may be significant and adverse, and evaluates alternatives to the SUP; and

Whereas, the Notice of Preparation of a Draft Subsequent Program EIR was circulated for a 30-day public review period (January 3, 2023 to February 2, 2023). Because of the large reach of the proposed program, LAUSD did not prepare an Initial Study (IS) to reduce the scope of the Subsequent Program EIR; the Subsequent Program EIR includes an analysis of all 20 CEQA topics and one additional LAUSD topic (pedestrian safety).³ The Subsequent Program EIR is required to identify any potentially significant adverse impacts and recommend mitigation that would reduce the impacts to less than insignificant; and

Whereas, the Subsequent Program EIR was prepared and circulated for a 45-day public review period (July 5, 2023 to August 19, 2023). The analysis documented in the Final Subsequent Program EIR found that the proposed program would result in possible significant and unavoidable impacts associated with air quality (construction), cultural resources (historical), noise (stadium, construction), and traffic; and now therefore be it.

Resolved, that the Board finds that:

The Project may not have an adverse effect on fish and wildlife, as referenced in §711.2 of the Fish and Game Code; and

The presumption of adverse effect set forth in California Code of Regulations, Title 14, §753.5(d) does not apply; and be it

Resolved further, that the Board hereby:

1. Finds that Subsequent Program EIR was completed in compliance with CEQA and State CEQA Guidelines, as amended; and
2. Finds that the Subsequent Program EIR reflects the District's independent judgment and analysis; and
3. Finds that the Board reviewed and considered the information in the Subsequent Program EIR before making a decision to approve the Project; and
4. Certifies the Subsequent Program EIR; and
5. Adopts the Findings of Fact; and
6. Adopts the Statement of Overriding Considerations; and
7. Adopts the Standard Conditions of Approval for the School Upgrade Program; and be it

Resolved further, that the Board specifies that the record of proceedings on which the Board's decision is based is located at the Los Angeles Unified School District, Office of Environmental Health and Safety, 333 South Beaudry Avenue, 21st Floor, Los Angeles, California, and the custodian of the record of proceedings is the Office of Environmental Health and Safety.

³ 14 CCR Section 15060(d).

PASSED, APPROVED AND ADOPTED this 12th day of December 2023, by the following vote:

AYES:

NOES:

ABSENT:

ABSTAIN:

Michael McLean
Executive Officer of the Board of Education

Date



LOS ANGELES UNIFIED SCHOOL DISTRICT Board of Education Report

FINAL SUBSEQUENT PROGRAM ENVIRONMENTAL IMPACT REPORT FOR THE SCHOOL UPGRADE PROGRAM FINDINGS OF FACT

I. INTRODUCTION

The California Environmental Quality Act (CEQA) requires that a number of written findings be made by the lead agency in connection with certification of an environmental impact report (EIR) prior to approval of the project pursuant to Sections 15091 and 15093 of the CEQA Guidelines and Section 21081 of the Public Resources Code. This document provides the findings required by CEQA.

A. Project Summary

The proposed School Upgrade Program (SUP) covers schools within the entire Los Angeles Unified School District (District or LAUSD). The District covers 710 square miles and encompasses most of the city of Los Angeles, along with all or portions of 25 cities and unincorporated areas of Los Angeles County. The SUP is the continuation of the District's bond program to build, modernize, and repair school facilities to improve student health, safety, and educational quality. The SUP does not have specific phases; it is an ongoing program that will continue well into the future. The Final Subsequent Program Environmental Impact Report (SPEIR) was prepared according to CEQA 14 CCR Section 15162(a) due to substantial changes in the goals and funding for the SUP from what was evaluated in the 2015 PEIR, and the implementation of Measure RR within the LAUSD SUP.

The SUP identifies overarching goals and principles, funding sources, and specific categories of need and spending targets. The purpose of the SUP is to reflect the intent, goals, and objectives of the FSD programs: Capital Improvement Program, Charter School Facilities Upgrades & Expansions Program, New School Construction Program, Repair & Modernization Program, and Joint Use/Innovation Fund. Because of the extensive number of individual projects anticipated under the SUP, they have been grouped into four categories based on the amount and type of construction and on location of the project.

- New Construction on New Property (adjacent to existing campus)
- New Construction on Existing Campus
- Modernization, Repair, Replacement, Upgrade, Remodel, Renovation, and Installation
- Operational and Other Campus Changes

SUP-related projects would include, but are not limited to, the following:

- Construction on an existing campus and/or property acquisition adjacent to an existing campus for a new classroom building, library/media center, performing arts, gymnasium, administration offices, stadium, athletic fields, restrooms, drop-off zones, parking, etc.
- Installation of temporary structures.
- Safety, Earthquake, Emergency, Fire-Prevention (upgrade fire/life safety systems; replace pipes and plumbing system, air conditioning and ventilation filtration systems, etc.).

- Lead, Asbestos, and Other Code Compliance.
- Special Education Career Transition Centers (renovate existing facilities).
- Library Upgrades (improvement and equipment for libraries and media centers).
- School Repair and Expansion (provision of furnishings and equipment, reopening closed schools, exterior repair and paint, repair and replace lockers, etc.).
- Computer and Communications (modernize classrooms, upgrades to telecommunications and video-teleconferencing systems, new hardware, and software, etc.).
- Sustainable Schools (improve energy efficiency, water efficiency, and renewable energy).
- Adult and Career Education (provide facilities necessary for career training).
- Early Childhood Education (renovate, repair, and/or create early education centers).
- Food Service (replace equipment, upgrade secondary school cafeterias, replace refrigeration systems, etc.).
- Temporary Classrooms (replace, upgrade, or relocate portable classrooms).

B. Project Objectives

The following objectives have been established for the SUP and will aid decision makers in their review of the project and associated environmental impacts:

- Repair aging schools and improve student safety.
- Upgrade schools to modern technology and educational needs.
- Create capacity to attract, retain, and graduate more students through a comprehensive portfolio of small, high-quality pre-K through adult schools.
- Promote healthier environment through green technology.

C. Environmental Review Process

In conformance with CEQA and the State CEQA Guidelines, the District conducted an extensive environmental review of the proposed project.

- The District determined that a SPEIR would be required for the proposed project and issued a Notice of Preparation (NOP) on January 3, 2023 (an Initial Study was not prepared). The public review period started on January 3, 2023 and concluded on February 2, 2023.
- The Draft SPEIR analyzed all 20 CEQA Guidelines Appendix G topics plus one additional LAUSD topic, Pedestrian Safety. Comments on the NOP were addressed in the SPEIR (see Table 2-1, *NOP Comment Summary*, in Chapter 2 of the Draft SPEIR).
- The Draft SPEIR was made available for a 45-day public review period that started on July 5, 2023 and concluded on August 19, 2023.
- The District prepared a Final SPEIR that contains comments on the Draft SPEIR, responses to those comments, and revisions to the Draft SPEIR. The Draft SPEIR is considered part of the Final SPEIR.

D. Record of Proceedings

For purposes of CEQA and these Findings, the Record of Proceedings for the proposed project consists of the following documents and other evidence, at a minimum:

- The NOP and all other public notices issued by the District in conjunction with the proposed project.
- The Final SPEIR (includes the Draft SPEIR) for the proposed project.
- All written comments submitted by public agencies or members of the public during the public review comment period on the Draft SPEIR.
- All responses to written comments submitted during the public review comment periods on the Draft SPEIR.
- All documents, studies, SPEIRs, or other materials incorporated by reference in the Final SPEIR.
- The Resolutions adopted by the District in connection with the proposed project.
- Matters of common knowledge to the District, including but not limited to federal, state, and local laws and regulations.
- Any documents expressly cited in these Findings.
- Any other relevant materials required to be in the record of proceedings by Public Resources Code Section 21167.6(e).

E. Custodian and Location of Records

The documents and other materials that constitute the administrative record for the District's actions related to the project are at the LAUSD Office of Environmental Health and Safety (OEHS), 333 South Beaudry Avenue, 21st Floor, Los Angeles, California 90017. OEHS is the custodian of the administrative record for the project. Copies of these documents, which constitute the record of proceedings, are and at all relevant times have been and will be available upon request at the offices of OEHS. This information is provided in compliance with Public Resources Code Section 21081.6(a)(2) and Guidelines Section 15091(e).

II. CEQA FINDINGS OVERVIEW

The District, as lead agency, is required under CEQA to make written findings concerning each alternative and each significant environmental impact identified in the Final EIR. Specifically, Guidelines Section 15091 states:

- (a) No public agency shall approve or carry out a project for which an EIR has been certified which identifies one or more significant environmental effects of the project unless the public agency makes one or more written findings for each of those significant effects, accompanied by a brief explanation of the rationale for each finding. The possible findings are:

1. Changes or alterations have been required in, or incorporated into, the project which avoid or substantially lessen the significant environmental effect as identified in the Final EIR.
 2. Such changes or alterations are within the responsibility and jurisdiction of another public agency and not the agency making the finding. Such changes have been adopted by such other agency or can and should be adopted by such other agency.
 3. Specific economic, legal, social, technological, or other considerations, including provision of employment opportunities for highly trained workers, make infeasible the mitigation measures or project alternatives identified in the Final EIR.
- (b) The findings required by subsection (a) shall be supported by substantial evidence in the record.
- (c) The finding in subdivision (a)(2) shall not be made if the agency making the finding has concurrent jurisdiction with another agency to deal with identified feasible mitigation measures or alternatives. The finding in subsection (a)(3) shall describe the specific reasons for rejecting identified mitigation measures and project alternatives.
- (d) When making the findings required in subdivision (a)(1), the agency shall also adopt a program for reporting on or monitoring the changes which it has either required in the project or made a condition of approval to avoid or substantially lessen significant environmental effects. These measures must be fully enforceable through permit conditions, agreements, or other measures.
- (e) The public agency shall specify the location and custodian of the documents or other material which constitute the record of the proceedings upon which its decision is based.
- (f) A statement made pursuant to Section 15093 does not substitute for the findings required by this section.

The “changes or alterations” referred to in Section 15091(a)(1) may include a wide variety of measures or actions as set forth in Guidelines Section 15370, including:

- (a) Avoiding the impact altogether by not taking a certain action or parts of an action.
- (b) Minimizing impacts by limiting the degree or magnitude of the action and its implementation.
- (c) Rectifying the impact by repairing, rehabilitating, or restoring the impacted environment.

- (d) Reducing or eliminating the impact over time by preservation and maintenance operations during the life of the action.
- (e) Compensating for the impact by replacing or providing substitute resources or environments.

III. ENVIRONMENTAL ISSUES THAT WERE DETERMINED TO BE LESS THAN SIGNIFICANT

The EIR analyzed all 20 CEQA Guidelines Appendix G topics plus one additional LAUSD topic, Pedestrian Safety. The following are impacts of the proposed project determined to be less than significant as detailed in Chapter 5 of the EIR.

- Aesthetics
- Agriculture and Forestry Resources
- Biological Resources
- Energy
- Geology and Soils
- Greenhouse Gas Emissions
- Hazards and Hazardous Materials
- Hydrology and Water Quality
- Land Use and Planning
- Mineral Resources
- Pedestrian Safety
- Population and Housing
- Public Services
- Recreation
- Tribal Cultural Resources
- Utilities and Service Systems
- Wildfire

IV. FINDINGS ON POTENTIALLY SIGNIFICANT IMPACTS

Even with incorporation of LAUSD Standard Conditions of Approval (see Chapter 4 and Appendix E of the Final SPEIR), existing federal, state, and local laws and regulations, some potentially significant impacts may occur. These potentially significant impacts may not be reduced to a less than significant level because currently no feasible measures or alternatives have been identified. Analysis for future site-specific SUP-related projects may identify project design features or measures that will reduce impacts.

Air Quality

- **Impact 5.3-2 Regional Construction emissions. Construction activities may generate short-term emissions that exceed of the South Coast Air Quality Management District's regional significance thresholds and cumulatively contribute to the South Coast Air Basin nonattainment designations.**

Finding 1 – The District hereby makes Finding 1 that LAUSD Standard Conditions of Approval are required and incorporated into the SUP and all future SUP-related site-specific projects which substantially lessen significant environmental effects as discussed in the Final SPEIR. However, significant construction-related criteria air pollutant emissions air quality impacts may still occur for some site-specific projects; Impact 5.3-2 would remain significant and unavoidable. In order to approve the proposed project, a Statement of Overriding Considerations is required.

Facts in Support of Finding

Compliance with SCAQMD rules and implementation of LAUSD SC-AQ-2, SC-AQ-3, and SC-AQ-4 would reduce construction-related criteria air pollutant emissions. However, these measures may not reduce construction-related emissions to below the SCAQMD regional construction significance thresholds for some SUP-related projects such as construction or demolition of large buildings and/or grading and excavation of large lots. Additionally, in accordance with the SCAQMD methodology, emissions that exceed the regional significance thresholds would cumulatively contribute to the nonattainment designations of the South Coast Air Basin (SoCAB). The SoCAB is designated nonattainment for O₃ and particulate matter (PM₁₀ and PM_{2.5}). Thus, a large project may cumulatively contribute to the nonattainment designations. No additional measures have been identified that would further reduce criteria air pollutant emissions beyond the LAUSD Standard Conditions that are already incorporated into the SUP, and no feasible measures would guarantee a less than significant impact for all SUP-related projects. Therefore, Impact 5.3-2 is considered potentially significant and unavoidable.

- **Impact 5.3-4 Local Construction Emissions. Site-specific SUP projects may generate short-term emissions that exceed South Coast Air Quality Management District's localized significance thresholds and expose sensitive receptors to substantial pollutant concentrations.**

Finding 1 – The District hereby makes Finding 1 that LAUSD Standard Conditions of Approval are required and incorporated into the SUP and all future site-specific projects which substantially lessen significant environmental effects as discussed in the Final SPEIR. However, significant construction-related localized air quality impacts may still occur for some site-specific projects; Impact 5.3-4 would remain significant and unavoidable. In order to approve the proposed project, a Statement of Overriding Considerations is required.

Facts in Support of Finding

A localized significance threshold (LST) analysis is based on the emissions generated at a construction site and the distance to the nearest sensitive receptor. LST analysis can only be conducted at a site-specific project-level; quantification of LSTs is not applicable for a program-level project with hundreds of sites. Future site-specific school projects of varying types could be built in proximity to existing sensitive receptors. Compliance with SCAQMD regulations and implementation of LAUSD SC-AQ-2, SC-AQ-3, and SC-AQ-4 would reduce localized air pollutant emissions from construction equipment exhaust and fugitive dust particulate matter emissions. Certain projects have the potential to expose sensitive receptors to substantial concentrations of criteria air pollutant emissions even with incorporation of LAUSD Standard Conditions. No additional measures have been identified that would further reduce localized construction emissions beyond the LAUSD Standard Conditions that are already incorporated into the SUP, and no feasible measures would guarantee a less than significant impact for all SUP-related projects. Therefore, Impact 5.3-4 is considered potentially significant and unavoidable.

Cultural Resources

- **Impact 5.5-1 Historical Resources.** SUP-related projects may cause a substantial adverse change in the significance of historical resources.

Finding 1 – The District hereby makes Finding 1 that LAUSD Standard Conditions of Approval are required and incorporated into the SUP and all future site-specific projects which substantially lessen significant environmental effects as discussed in the Final SPEIR. However, significant historic resource impacts may still occur for some site-specific projects; Impact 5.5-1 would remain significant and unavoidable. In order to approve the proposed project, a Statement of Overriding Considerations is required.

Facts in Support of Finding

The SUP may result in demolition or destruction of historical resources; relocation, conversion, rehabilitation, or alteration of historical resources that substantially impairs the significance of the resources; and/or changes to the immediate surroundings of a historical resource that materially impairs the significance of the resource.

When a historical resource is identified, LAUSD must consider: (1) whether the proposed project would result in potentially significant impacts on the historical resources, and (2) if so, whether project design alternations or other feasible measures or alternatives would avoid or substantially reduce the impacts. Each project that may impact an historic resource will include implementation of LAUSD SC-CUL-1 through SC-CUL-11 that reduce impacts caused by the relocation, conversion, rehabilitation, alteration, damage, or demolition of a historical resource. No additional measures have been identified that would further reduce impacts to a historic resource beyond the LAUSD Standard Conditions that are already incorporated into the SUP, and no feasible measures would guarantee a less than significant impact for all SUP-related projects at historic schools. Therefore, Impact 5.5-1 is considered potentially significant and unavoidable.

Noise

- **Impact 5.13-1 Local Noise Ordinance.** SUP implementation may result in exposure of persons to or generation of noise levels in excess of standards established in the local general plan or noise ordinance.

Finding 1 – The District hereby makes Finding 1 that LAUSD Standard Conditions of Approval are required and incorporated into the SUP and all future site-specific projects which substantially lessen significant environmental effects as discussed in the Final SPEIR. However, significant operational noise impacts may still occur for some site-specific projects; Impact 5.13-1 would remain significant and unavoidable. In order to approve the proposed project, a Statement of Overriding Considerations is required.

Facts in Support of Finding

Construction activities associated with the SUP could cause substantial short-term noise from the use of stationary and mobile construction equipment. Some project types such as new athletic fields (sports

events), playgrounds, parking lots, or even the installation of lights on athletic fields (new nighttime events) would have the potential to cause a significant noise increase.

Implementation of LAUSD SC-N-4 would include buffer zones, berms, sound barriers, or building orientation improvements between playgrounds and adjacent residential uses, or other special design features to reduce noise levels at nearby noise-sensitive land uses to no more than 3 dBA CNEL. There are some measures that can be incorporated into a stadium project, such as enclosing the foot wells or installing a solid back to the bleachers and installing block walls; however, there is no guarantee that these measures would reduce noise to less than significant levels. Future SUP-related projects, such as stadiums, stadium lights, and playfields would have a noise assessment conducted to determine impacts to the surrounding community. In the worst-case scenario, a 5 dBA reduction at an adjacent residential property may still exceed the 70 dBA L_{max} standard. While the level of noise at the residents could exceed either the daytime or nighttime standards, school-related noise is typically exempt under the jurisdictional municipal codes and in this respect does not represent a significant impact. This does not, however, exempt this noise from a significance determination under CEQA. Therefore, school operation and/or stadium noise impacts are considered potentially significant. No additional measures have been identified that would further reduce localized construction emissions beyond the LAUSD Standard Conditions that are already incorporated into the SUP, and no feasible measures would guarantee a less than significant impact for all SUP-related projects. Therefore, Impact 5.13-1 is considered potentially significant and unavoidable.

■ **Impact 5.13-2 Construction Vibration. SUP-related project construction activities may result in generation of excessive ground borne vibration.**

Finding 1 – The District hereby makes Finding 1 that LAUSD Standard Conditions of Approval are required and incorporated into the SUP and all future site-specific projects which substantially lessen significant environmental effects as discussed in the Final SPEIR. However, significant construction vibration impacts may still occur for some site-specific projects; Impact 5.13-2 would remain significant and unavoidable. In order to approve the proposed project, a Statement of Overriding Considerations is required.

Facts in Support of Finding

Most of the SUP-related site-specific project would have little or no effect on surrounding buildings or people. However, some demolition and/or construction activities within 25 feet of a historic building or where pile driving activities are within 150 feet of a structure may cause vibration annoyance and/or architectural damage. Implementation of LAUSD SC-N-5, SC-N-6, SC-N-7, and SC-N-8 would reduce construction-related vibration impacts, but for some projects these LAUSD Standard Conditions may not be enough to avoid the impact. For these types of projects, a detailed vibration assessment would be provided by an acoustical engineer to analyze potential vibration impacts and to determine feasible alternatives to reduce or eliminate potential risk of annoyance and architectural damage. It is anticipated that for some large projects adjacent to residences or a building with fragile wall treatment or an older historic building, no feasible measures would be available that would further reduce possible vibration impacts beyond the LAUSD Standard Conditions that are already incorporated into the SUP. There may be no feasible mitigation measures that would guarantee a less than significant impact for all SUP-related projects. Therefore, Impact 5.13-2 is considered significant and unavoidable.

Transportation and Traffic

- **Impact 5.17-2 Traffic. SUP-related trip generation may result in designated road and/or highways exceeding county congestion management agency standards.**

Finding 1 – The District hereby makes Finding 1 that LAUSD Standard Conditions of Approval are required and incorporated into the SUP and all future site-specific projects which substantially lessen significant environmental effects as discussed in the Final SPEIR. However, significant Congestion Management Program (CMP) roadway impacts may still occur for some site-specific projects; Impact 5.17-2 would remain significant and unavoidable. In order to approve the proposed project, a Statement of Overriding Considerations is required.

Facts in Support of Finding

SUP-related project trip generation may result in designated road and/or highways exceeding county congestion management agency standards.

Traffic impacts may occur for some projects, such as those that significantly increase students on a campus or construct a large stadium. Implementation of LAUSD SC-T-1, SC-T-2, SC-T-3, and SC-AQ-5 would encourage ride sharing to reduce reliance on private auto trips; require specific analysis methods to evaluate traffic impacts and implement adequate traffic control devices; and provide adequate site access. Possible mitigation- measures to offset vehicular impacts to the CMP system could include intersection and roadway widening and restriping and turn restrictions. However, it may be infeasible to implement other measures to reduce potential impacts on CMP roadways from all future projects. Therefore, Impact 5.17-2 is considered potentially significant and unavoidable.



LOS ANGELES UNIFIED SCHOOL DISTRICT Board of Education Report

FINAL SUBSEQUENT PROGRAM ENVIRONMENTAL IMPACT REPORT FOR THE SCHOOL UPGRADE PROGRAM STATEMENT OF OVERRIDING CONSIDERATIONS

I. INTRODUCTION

The Los Angeles Unified School District (District or LAUSD) is the lead agency under the California Environmental Quality Act (CEQA) and is responsible for preparation, review, and certification of the Final Subsequent Program Environmental Impact Report (SPEIR) for the School Upgrade Program (SUP) project. As the lead agency, the District is also responsible for determining the potential environmental impacts of the proposed program, which of those impacts are significant, and which can be reduced or eliminated through implementation of Standard Conditions of Approval and mitigation measures. CEQA then requires the lead agency to balance the benefits of the SUP against its significant unavoidable adverse environmental impacts in determining whether or not to approve the Program. In making this determination, the District complies with CEQA Guidelines Section 15093, which provides:

CEQA requires the decision-making agency to balance, as applicable, the economic, legal, social, technological, or other benefits, including region-wide or statewide environmental benefits, of a proposed project against its unavoidable environmental risks when determining whether to approve the project. If the specific economic, legal, social, technological, or other benefits, including region-wide or statewide environmental benefits, of a proposed project outweigh the unavoidable adverse environmental effects, the adverse environmental effects may be considered “acceptable.”

When the lead agency approves a project which will result in the occurrence of significant effects which are identified in the final EIR but are not avoided or substantially lessened, the agency shall state in writing the specific reasons to support its action based on the final EIR and/or other information in the record. The statement of overriding considerations shall be supported by substantial evidence in the record.

If an agency makes a statement of overriding considerations, the statement should be included in the record of the project approval and should be mentioned in the notice of determination. This statement does not substitute for, and shall be in addition to, findings required pursuant to Section 15091.

In addition, Public Resources Code, Section 21081(b), requires that where a public agency finds that specific economic, legal, social, technological, or other considerations, including considerations for the provision of employment opportunities for highly trained workers, make infeasible the mitigation measures or alternatives identified in an EIR and thereby leave significant unavoidable effects, the public

agency must also find that overriding economic, legal, social, technological, or other benefits of the project outweigh the significant effects of the project.

Pursuant to Public Resources Code Section 21081(b) and the State CEQA Guidelines Section 15093, the District has balanced the benefits of the SUP against the following significant unavoidable adverse environmental impacts and has adopted Standard Conditions of Approval and considered all feasible measures with respect to these impacts. The District has examined alternatives to the SUP, none of which both meets the project objectives and is environmentally preferable to the proposed project.

II. SIGNIFICANT UNAVOIDABLE ADVERSE ENVIRONMENTAL IMPACTS

Although most potential impacts have been substantially reduced or avoided, as described in the Final SPEIR, there remain some environmental impacts for which feasible mitigation is not currently available. Standard Conditions of Approval were adopted by the District; however, even with implementation of standard conditions, the District finds that some future SUP-related site-specific project impacts may not be reduced to less than significant. The Final SPEIR identified the following significant unavoidable adverse impacts of the SUP.

Air Quality

- **Impact 5.3-2 Construction activities may generate short-term emissions that exceed of the South Coast Air Quality Management District's regional significance thresholds and cumulatively contribute to the South Coast Air Basin nonattainment designations.**

Compliance with SCAQMD regulations and LAUSD Standard Conditions would reduce criteria air pollutant emissions from construction-related activities. However, short-term emissions generated from future individual projects could still exceed the SCAQMD regional significance threshold criteria.

No additional measures have been identified that would further reduce criteria air pollutant emissions beyond the LAUSD Standard Conditions that are already incorporated into the SUP, and no feasible measures would guarantee a less than significant impact for all SUP-related projects. Therefore, Impact 5.3-2 is considered potentially significant and unavoidable.

- **Impact 5.3-4 Local Construction Emissions.** Site-specific SUP projects may generate short-term emissions that exceed South Coast Air Quality Management District's localized significance thresholds and expose sensitive receptors to substantial pollutant concentrations.

Compliance with SCAQMD regulations and LAUSD Standard Conditions would reduce criteria air pollutant emissions from construction-related activities. However, short-term onsite emissions generated from future individual projects could still exceed the SCAQMD localized significance threshold criteria, even after this reduction. No additional measures have been identified that would further reduce localized short-term construction emissions beyond the LAUSD Standard Conditions that are already incorporated

into the SUP, and no feasible measures would guarantee a less than significant impact for all SUP-related projects. Therefore, Impact 5.3-4 is considered potentially significant and unavoidable.

Cultural Resources

- **Impact 5.5-1 Historical Resources.** SUP-related projects may cause a substantial adverse change in the significance of historical resources.

Each project that may impact a historic resource will include implementation of SC-CUL-1 through SC-CUL-11 to reduce impacts from relocation, conversion, rehabilitation, alteration, damage, or demolition of a historic resource. LAUSD Standard Conditions would reduce historic resource impacts to the extent feasible; however, no mechanism for the full mitigation has been established. Even with the LAUSD Standard Conditions, impacts associated with the demolition or damage to a historic resource may be significant. Therefore, Impact 5.5-1 is considered potentially significant and unavoidable.

Noise

- **Impact 5.13-1 Local Noise Ordinance.** SUP implementation may result in exposure of persons to or generation of noise levels in excess of standards established in the local general plan or noise ordinance.

Construction activities associated with the SUP could cause substantial short-term noise from the use of stationary and mobile construction equipment. Incorporation of SC-N-4, SC-N-8, and SC-N-9 would reduce noise impacts during construction by limiting the construction schedule, implementing feasible noise attenuation measures, and providing advance notice to nearby noise receptors. Although compliance with local regulations and incorporation of the LAUSD Standard Conditions into each individual project would reduce noise levels at nearby sensitive receptors, construction noise may still result in a substantial increase over the ambient noise or exceed local noise standards for some SUP-related projects. Therefore, Impact 5.13-1 is considered potentially significant and unavoidable.

- **Impact 5.13-2 Construction Vibration.** SUP-related project construction activities may result in generation of excessive ground borne vibration.

Demolition and construction for activities within 25 feet of a historic building or where pile driving activities are within 150 feet of a structure and may cause vibration annoyance and/or architectural damage. For these types of projects, a detailed vibration assessment would be provided by an acoustical engineer to analyze potential vibration impacts to nearby structures and to determine feasible alternatives to eliminate potential risk of annoyance and architectural damage. Implementation of LAUSD SC-N-4, SC-N-5, SC-N-6, and SC-N-7 would reduce construction-related vibration impacts, but for some projects, these LAUSD Standard Conditions may not be enough to avoid the impact. No additional measures are available to reduce impacts. Therefore, Impact 5.13-2 is considered potentially significant and unavoidable.

Transportation and Traffic

- **Impact 5.17-2 Traffic.** SUP-related trip generation may result in designated road and/or highways exceeding county congestion management agency standards.

VMT impacts may occur for some large-scale projects, such as major administrative centers or athletic facilities, associated with the SUP. Implementation of mitigation measures would further evaluate the significance of potential VMT impacts and, if necessary, identify Transportation Demand Management (TDM) measures to reduce VMT impacts. Possible TDM measures could include priced workplace parking, transit subsidies, voluntary travel behavior change programs, commute trip reduction programs, shared mobility programs, and improved bicycle/pedestrian infrastructure. Most SUP projects are expected to have a less than significant VMT impact; however, it may be infeasible to implement TDM measures that would fully mitigate VMT impacts for large-scale projects that are expected to attract people from a broader area. Therefore, Impact 5.17-2 would remain significant and unavoidable.

III. OVERRIDING CONSIDERATIONS

Almost half of the District's buildings were constructed at least 50 years ago, nearly 800 of the buildings were constructed more than 75 years ago, and 14 percent of newly constructed schools are at least 10 years old. The School Upgrade Program (SUP) was created to develop projects that modernize, build, and upgrade school facilities to improve student health, safety, and educational quality. To date, over 20,000 repair and modernization projects have been funded by the SUP and completed by Facilities Services Division, and additional projects valued at approximately \$5.8 billion are underway. Implementation of the projects under the SUP target project categories identified and gathered from engagement with local leadership and will allow further improvements to prioritized projects including increased Americans with Disabilities Act (ADA) accessibility, gymnasium air conditioning, technology infrastructure and systems, new and expanded wellness centers, as well as other pressing school facilities needs related to safety, compliance, and instructional requirements. The collaborative effort sought to identify the types of facilities and technology improvements that would be most important to school communities at all schools as well as at each grade level.

The following describes the benefits of the SUP that outweigh its potential significant unavoidable adverse environmental impacts.

1. Repair aging schools and improve student safety.

The projects proposed under the SUP will upgrade schools to ensure student and staff safety.

- Safety, Earthquake, Emergency, Fire-Prevention
 - Renovate and replace school buildings to ensure current earthquake safety standards are met.
 - Installation, repair, and upgrades to fire alarm, fire-suppression, and other fire/life safety systems and equipment and other fire/life safety projects.
 - ADA improvements to accommodate disabled students.
 - Asbestos hazard removal program.
 - Replace pipes and plumbing systems in schools to remove lead and improve water quality.
 - Install and upgrade air conditioning and ventilation filtration systems to improve air quality at schools.

- Installation of security alarms, security systems, security cameras, and other intrusion/security system projects.
 - Emergency-communications upgrades for classrooms to ensure immediate access to 911 system Networking, voice communications, and security-measure installations and upgrades at Skills Centers, Occupational Centers, Opportunity Schools, and Learning Centers.
- **Lead and Asbestos and Other Code-Compliance**
- Lead and asbestos abatement in classrooms, hallways, cafeterias, gymnasiums, auditoriums, libraries, offices, and other school buildings and grounds.
 - Repairs and improvements designed to achieve compliance with state and local building codes.

2. Upgrades schools to modern technology and educational needs.

Despite the significant investments in schools to address overcrowding and disrepair, the District still faces the need to make up for decades of facilities neglect. The projects proposed under the SUP will upgrade building systems.

- **School Repair and Expansion**
- Systematic program to prioritize District repair projects in an effort to achieve a satisfactory District-wide condition for facilities, using the “Facilities Condition Index” to evaluate and quantify the facility repair requirements.
 - Provide missing and upgrade deficient school buildings (core facilities) such as restrooms, auditoriums, gymnasiums, libraries, playgrounds, multi-purpose rooms, administrative spaces, and parking, leveraging bond funds with State, non-profit, business, private, and industrial matching funds.
 - Provide furnishing and equipment for new and existing facilities.
 - Re-New Our Schools – campus-wide renovations, upgrades, and creation of smaller schools, including magnets, to create a portfolio of small learning environments.
 - Reopening closed schools for use as school facilities.
 - Upgrades and repairs to plumbing, lighting, and electrical systems.
 - Upgrades and repairs to heating, ventilation, and air conditioning systems.
 - Interior repair, remodeling, painting, and renovations.
 - Paving, striping, and equipping athletic fields, playgrounds, play equipment, fencing, and other site-improvement projects.
 - Repair and replacement of building systems such as flooring, windows, and roofing.
 - Provide new and repair and replace existing playground equipment, including matting.
 - Classroom remodeling and other modernizations and renovations.
 - Exterior repair, painting, remodeling, and renovations.
 - Repair and replacement of lockers.

- Structural and architectural modifications and renovations to convert large schools into small schools, magnets, and small learning communities.

3. Create capacity to attract, retain, and graduate more students through a comprehensive portfolio of small high quality pre-K through adult schools.

Projects proposed under the SUP will repair and modernize existing schools, replace bungalows with permanent classrooms, expand early-education facilities, and provide sufficient core facilities at hundreds of schools. These projects will also help the District satisfy court-mandated compliance under the Williams Settlement.

Projects proposed under the SUP will enable the District to construct classroom seats needed to enact the Quality Education Investment Act (QEIA) class size reductions, and facilities for special education students under the Chanda Smith Consent Decree (1996) and Modified Consent Decree (2004).

- Special Education Career Transition Centers
 - Renovate existing facilities to provide Career Transition Centers for severely disabled students to teach them living and career skills.
- Library Upgrades
 - Improvements and new equipment for libraries and media centers, including inventory control and security equipment.
- School Repair and Expansion
 - Provide adequate specialized labs necessary to teach the courses students need to meet A-G requirements and gain eligibility for admission to UC/CSU colleges.
- Computer and Communications
 - Provide schools with modernized classrooms to leverage new instructional models and virtual learning communities.
 - Complete build-out of Local Area Networks in schools, install converged data communication network, and increase bandwidth to schools to provide access to high quality instructional content.
 - Build or acquire an energy-efficient data center for critical business, safety, and instructional systems and implement smart IT asset management infrastructure.
 - Installation of, and upgrades to, telecommunications and video-teleconferencing facilities and systems.
 - Installation of, and upgrades to, public-address systems, emergency radio communications systems, and other communications facilities.
 - Hardware and software for information-technology applications.
- Adult and Career Education

- Projects to ensure that schools have the facilities necessary to provide career training for students who will not be attending college.
- Early Childhood Education
 - Projects to renovate, repair, and create early education centers in elementary schools to close the achievement gap for all children by providing additional seats for preschool children.
- School Buses
 - Replace existing, aging diesel buses with modern vehicles meeting California’s strict air-emissions standards and reducing operating costs.
- Food Service
 - Replace existing equipment deemed beyond economical repair and upgrade outdated facilities, outdated plumbing, exhaust hoods and fire suppression systems to meet current fire, mechanical and health codes and resolve Department of Public Health violations.
 - Upgrade secondary school cafeterias by modernizing serving lines, equipment configuration, serving, and seating areas.
 - Provide the ability to keep hot food hot and cold food cold at the point of service.
 - Increase through-put of students and correlating increase in seating requirements.
 - Replace aging beyond economic repair refrigeration systems with energy-efficient systems.
- Temporary-classroom replacement and upgrade
 - Replacement of temporary portable classrooms.
 - Structural upgrades of portable classrooms and other projects to replace or structurally upgrade projects where replacement is uneconomical, impractical, or infeasible.
 - Provision and relocation of portable classrooms.

4. Promote healthier environment through green technology.

With the adoption of Los Angeles City Board of Education Resolution (Res-002-22/23)¹, the District is committed to a long-term effort to ensure all school facilities have adequate nature-based, climate-appropriate green spaces where students recreate, play, and spend time. These projects will also help the District satisfy court-mandated compliance under the Williams Settlement. Under the major modernizations, upgrades, and reconfigurations category, the Measure RR implementation plan targets funds to upgrade approximately 2,300 classrooms at 50 schools and create outdoor learning environments. Projects proposed under the SUP will enable the District to construct classroom seats needed to enact the Quality Education Investment Act (QEIA) class size reductions, and facilities for special education students under the Chanda Smith Consent Decree (1996) and Modified Consent Decree (2004).

- Sustainable Schools

¹ Los Angeles City Board of Education Resolution: Green Schools for All: Equitable Funding and Expansion of Green Spaces across District Campuses (Res-002-22/23). September 27, 2022.

- Sustainable environment enhancement developments for schools (SEEDS) projects, and urban greening partnerships.
- Improve energy efficiency, water efficiency, and renewable energy at schools, including installation of energy efficiency projects and renewable energy projects, such as solar and wind arrays, to contribute toward compliance with the California Global Warming Solutions Act of 2006.
- Installation of low-flow restroom fixtures and smart irrigation controllers in schools and other water efficiency projects.

IV. CONCLUSION

For the foregoing reasons, implementation of the SUP and the associated actions will create physically safe schools, sound, and efficient school building systems, and will align school facilities with instructional requirements and the District's vision at schools throughout the 710-square-mile Los Angeles Unified School District.

The District finds that the program's benefits outweigh the potential significant unavoidable adverse environmental impacts, and those impacts, therefore, are considered acceptable in light of the program's benefits. The District finds that each of the benefits described above is an overriding consideration, independent of the other benefits, that warrants approval of the SUP.